

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

vs.

Case No. 2024-CC-002691

KALMAN HARTIG and ANY UNKNOWN
TENANT(s)
Defendants.

_____ /

PLAINTIFF'S WITNESS AND EXHIBIT LIST FOR TRIAL

The Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through the undersigned counsel, hereby identifies in anticipation of trial the following witnesses and gives notification that they may use the following as Exhibits in the above styled cause:

Witnesses:

1. Cheryl Peake
Park Manager for Colonial Mobile Manor
900 9th Avenue East
Palmetto, FL 34221
2. Brian Nays
Maintenance Manager for Colonial Mobile Manor
900 9th Avenue East
Palmetto, FL 34221
3. Kalman Hartig
900 9th Avenue East; Lot #100
Palmetto, FL 34221
4. Rolf Hanson
Regional Manager for Kingsley Management
4956 N. 300 W; Suite 200
Provo, Utah 84604

5. Sylvia Esparza
900 9th Avenue East; Lot #112
Palmetto, FL 34221
6. Brenda Whitley
900 9th Avenue East; Lot #101
Palmetto, FL 34221
7. Mark Newmam
900 9th Avenue East; Lot #125
Palmetto, FL 34221

Exhibits:

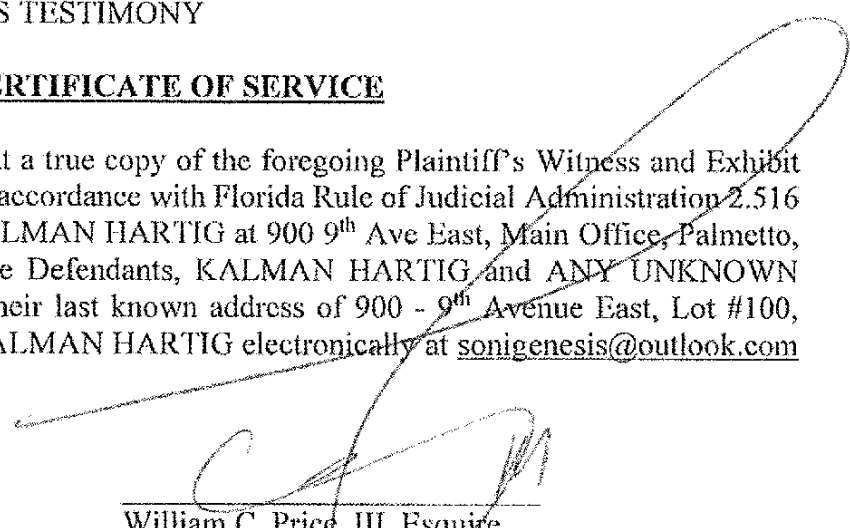
1. Colonial Manor Prospectus Dated January 1, 2011
2. Colonial Manor Rules and Regulations January 1, 2011
3. Colonial Manor Rules and Regulations January 1, 2016
4. Agreement to follow rules signed by Kalman Hartig on October, 24, 2020
5. Copy of Driver License of Kalman Hartig
6. Lease Agreement dated January 1, 2024 signed by Defendant, Kalman Hartig
7. Copy of Title for Double Wide Mobile Home located at 900 9th Avenue East; Lot #100, Palmetto, FL 34221
8. Courtesy Lot/Home Observation Notice Dated July 10, 2023
9. 2nd Courtesy Lot/Home Observation Notice Dated August 25, 2023
10. 3rd Courtesy Lot/Home Observation Notice Dated October 10, 2023
11. 4th Courtesy Lot/Home Observation Notice Dated October 24, 2023
12. 5th Courtesy Lot/Home Observation Notice Dated November 7, 2024
13. 6th Courtesy Lot/Home Observation Notice Dated November 24, 2024
14. 7th Courtesy Lot/Home Observation Notice Dated December 13, 2023
15. 7-Day Notice of Violation of Park Rules Dated January 17, 2024
16. Notice of Termination of Lease Dated March 1, 2024

17. 7-Day Notice of Violation of Park Rules Dated June 10, 2024
18. Notice of Termination of Lease Dated June 28, 2024
19. Pictures of Mobile Home located at 900 9th Ave East; Lot #100, Palmetto, FL 3422

ALL DOCUMENTS LISTED BY DEFENDANT AND DOCUMENTS TO REBUT
DEFENDANT'S WITNESS TESTIMONY

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Plaintiff's Witness and Exhibit List for Trial has been furnished in accordance with Florida Rule of Judicial Administration 2.516 via hand delivery to Defendant KALMAN HARTIG at 900 9th Ave East, Main Office, Palmetto, FL 34221, via U.S. Mail upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #100, Palmetto, Florida, 34221 and to KALMAN HARTIG electronically at sonigenesis@outlook.com on this 28th day of March, 2025.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Pleadings@wcpricelaw.com
Attorney for the Plaintiff

COLONIAL MOBILE MANOR PROSPECTUS

1. THIS PROSPECTUS CONTAINS VERY IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS AND YOUR FINANCIAL OBLIGATIONS IN LEASING A MOBILE HOME LOT. MAKE SURE THAT YOU READ THE ENTIRE DOCUMENT AND SEEK LEGAL ADVICE IF YOU HAVE ANY QUESTIONS REGARDING THE INFORMATION SET FORTH IN THIS DOCUMENT.
2. THE STATEMENT CONTAINED HEREIN ARE ONLY SUMMARY IN NATURE. A PROSPECTIVE LESSEE SHOULD REFER TO ALL REFERENCES, ALL EXHIBITS HERETO, THE CONTRACT DOCUMENTS, AND SALES MATERIALS.
3. ORAL REPRESENTATIONS SHOULD NOT BE RELIED UPON AS CORRECTLY STATING THE REPRESENTATIONS OF THE PARK OWNER OR OPERATOR. REFER TO THIS PROSPECTUS (OFFERING CIRCULAR) AND ITS EXHIBITS FOR CORRECT REPRESENTATIONS.
4. UPON DELIVERY OF THE PROSPECTUS TO A PROSPECTIVE LESSEE, THE RENTAL AGREEMENT IS VOIDABLE BY THE LESSEE FOR A PERIOD OF FIFTEEN (15) DAYS.

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PROSPECTUS FOR

1. NAME AND ADDRESS OF PARK

Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

2. RECEIPT OF NOTICES AND DEMANDS

The person authorized to receive notices and demands on the Park owner's behalf is:

The Park Manager
Colonial Mobile Manor
900 - 9th Avenue East
Palmetto, Florida 34221

3. PARK PROPERTY DESCRIPTION

A. Lots, Set-Backs, and Minimum Separation between Mobile Homes

235 Lots in the Park
Approximate size: 50' x 75'

The Set-Back requirement is 10 foot, with 10 foot separation distance between mobile homes.

B. Shared Facilities

The maximum number of lots using shared facilities is five hundred (500).

4. RECREATION AND COMMON FACILITIES

The Mobile Home Park has a clubhouse, which is located at the front of the Park, and which has a single room of approximately 4,300 square feet, with a capacity of four hundred (400) persons. The clubhouse is used for social activities.

DAYS AND HOURS OF OPERATION

The clubhouse is open seven (7) days a week, from 9:00 a.m. to 10:00 p.m., and its use must be approved by Park management.

PERSONAL PROPERTY

There is no personal property available for the mobile home owners.

FUTURE IMPROVEMENTS

All improvements to the Mobile Home Park are now complete.

5. PARK MANAGEMENT AND MAINTENANCE

The manager of the Mobile Home Park is responsible for the maintenance and operation of the Park. The manager's office is in the clubhouse, and will have posted hours and days of operation. Any questions concerning Park operations should be directed to the Park manager.

6. MOBILE HOME OWNER REQUIRED IMPROVEMENTS

As a condition of their occupancy in the Mobile Home Park, new residents, after June 4, 1984, must install the following within forty (40) days after the home is placed on the lot:

Remove hitch, skirt home with aluminum or brick, concrete driveway to the street (12' width), aluminum carport (minimum 12' x 32'), utility shed build to the roof of the carport (minimum 6' x 8'), concrete/brick patio with aluminum cover and screened (minimum 100 square feet), concrete or brick steps at each entrance to the home, fully sodded lawn, and a brick flower planter in front of the home (minimum size 2' x 8' x 2').

7. UTILITIES AND OTHER SERVICES

Water is provided by the City of Palmetto and is billed directly to the mobile home owner. The home owner is responsible for any repairs to the home's water spigots and/or water line from the home to the main line. Park owner is responsible for the maintenance of the main line. The utility charge is not included in the lot rental amount.

SEWAGE

Sewage disposal is provided by the City of Palmetto, and is billed to the mobile home owner. Sewer disposal fees are not included in the monthly lot rental amount. The in-ground connection and the sewer line from the home to the main line are the mobile home owner's responsibility. The Park owner is responsible for the maintenance of the

main line.

WASTE DISPOSAL

Garbage and trash collection are provided curbside by the City of Palmetto and is billed to the mobile home owner, and are not included in the lot rental amount.

STORM DRAINAGE

Any storm drains are provided by and maintained by the Mobile Home Park by natural run-off.

ELECTRICITY

Electricity is provided by Florida Power & Light Company, which bills each home owner directly. Florida Power & Light is responsible for any main electrical lines. The home owner is responsible for the electric bill and for the electrical lines to the home or any connection outside the home, including the utility shed connections, breaker and outside receptacles. The cost of electricity is not included in the lot rental amount.

CABLE TELEVISION

Cable TV is not available.

8. INCREASES IN LOT RENTAL AMOUNT

The current lot rental amount of \$_____ is in effect until _____. At the end of the period, the lot rental amount and other charges may be increased with ninety (90) days notice to the home owner. Factors which affect lot rental amount are charges for water, sewer, garbage, trash removal, maintenance, repairs, gas, electricity, insurance, office, telephone, management, television service, taxes, licenses, government fees, accounting fees, legal fees, and the value of the Park. An increase in one or more of the factors may result in an increase in the home owner's lot rental amount. The lot rental amount may be raised a minimum of \$25.00 per month and up to a maximum of \$25.00 per month plus eighteen (18) times the Consumer Price Index (CPI) per month, whichever is greater. The CPI is the U.S. Department of Labor, U.S. City Average, All Urban Consumers, 1976 = 100, or in the event of the discontinuation of publication of the CPI, then an alternative index generally accepted as the replacement index for the CPI.

The lot rental amount is based on occupancy of 1 or 2 adults. Each additional person will be charged \$_____ per year, payable at \$_____ per month. The charge for an non-sufficient funds (NSF) check is \$_____. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35. Rent received late and after the tenth of the month is subject to additional rent of \$75. Failure by home owner to properly maintain the home's

lawn will cost the home owner \$50.00 per mowing, trimming and edging...

9. PARK RULES AND REGULATIONS

- A. Current Park Rules and Regulations - see Exhibits.
- B. Changes in Rules and Regulations

The Mobile Home Park owner shall give ninety (90) days written notice of any change in Park rules and regulations. Rules adopted as a result of restrictions imposed by government entities may be enforced prior to the expiration of the ninety (90) day period. A committee, not to exceed five (5) in number, designated by a majority of the mobile home owners shall meet with the Park owner to discuss such changes within thirty (30) days of the notice from the Park owner.

10. ZONING CLASSIFICATION

Present zoning of the Mobile Home Park is RMH. The permitted use under the zoning classification is mobile home park. No commercial or industrial use is presently allowed.

11. ZONING

The present zoning of the Mobile Home Park is RMH. The name of the zoning authority which has jurisdiction over the land comprising of Mobile Home Park is the City of Palmetto.

The Mobile Home Park owner has no plans to seek a change in the use of the land.

12. EXHIBITS

- A. Rules and Regulations of the Mobile Home Park.
- B. Lease Agreement between Park owner and mobile home owner.
- C. Copy of the Mobile Home Park layout.

13. Approved by the Florida Division of Condominiums, Time Shares and Mobile Homes on _____.

Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (941) 722-3191

RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in

the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

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20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aerials are not permitted.

21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #___, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager

900 - 9th Avenue East

Palmetto, Florida 34221.

As to Owner:

Colonial Mobile Manor Limited LLLP

900 - 9th Avenue East

Palmetto, Florida 34221.

Colonial Mobile Manor

900 9th Avenue East (US 301 N.), Palmetto, Florida 34221

Phone (941) 722-3191

RULES & REGULATIONS - EFFECTIVE APRIL 1, 2016

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received after close of business the Fifth of each month, is subject to additional rent of \$45 on the Sixth of each month, and an additional \$5 per day thereafter. The charge for a dishonored check is \$40. Rent checks returned will incur a late fee in addition to the dishonored check fee of \$40, if not repaid within 24 hours of notification of Home Owner. Upon receipt of a dishonored check, only cashier's checks, certified checks and money orders will be accepted. Colonial Mobile Manor does not accept cash. Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due on the bill, there will be a \$35 late charge per month constituting additional rent and payable to Colonial Mobile Manor.
2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.
3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved in advance to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved resident may have a member of his (her) immediate family (spouse, parent, adult sibling, or child) approved to reside with him (her) so long as the family member is over the age of 40 and has been approved to live in the home. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his/her home. No one under the age of 40 may reside in any home in the park under any circumstances subject to federal regulations. Maximum approved residency in a home is limited to three (3) persons.
4. **INVITEES** - Approved Residents must register all persons staying in the park overnight with Park Management prior to their arrival, including dates of arrival and departure. Each invitee must supply proof of identity and be approved by Park Management. Invitees may stay without charge for up to 15 consecutive days or a total of 30 days per calendar year. After 30 days, an invitee must pay \$75 per invitee per month or part thereof and may not stay beyond an additional 30 days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including, without limitation, babysitting or child day care, are permitted at the park or on or in any lot or home. All residents of the park must comply with all City and County codes and ordinances.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - Homeowners shall maintain their lot and the exterior of their home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway or carport, or anywhere otherwise on the lot. Homeowners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9 A.M. or after 5 P.M., or in accordance with any government watering regulation. Excessive watering causing water to run-off into the street and not removing lawn clippings from the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Management approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50 per mowing, trimming, and edging of the grass.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by residents. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8 A.M. - 9 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by Colonial Mobile Manor. Any alterations or changes to the personal property or to the clubhouse must be approved by Park Management. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by Park Management prior to residency. It is also the obligation of the homeowner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as Homeowners. If the Renter is seasonal (i.e. less than one year), a maximum of 2 seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the streets of Colonial Mobile Manor. Parking on the grass on homeowner lots or on common grounds is not allowed. Vehicles illegally parked or without current license tags may be towed by Park Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on other homeowner lots is prohibited unless written permission is given by the other homeowner to Colonial Mobile Manor.
12. **WATER** - During periods of extended vacation, the homeowner must turn off the water supply valve to the home. Should it become necessary, because of wilful or negligent acts of the homeowner/resident, for Colonial Mobile Manor to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the homeowner shall owe Colonial Mobile Manor for the costs of repair shall be charged to the homeowner. Unpaid costs shall constitute a lien against the homeowner's property on the lot. Homes with electric water heaters must have a check valve installed.
13. **SEWER** - The homeowner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the homeowner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the homeowner's property on the lot.
14. **GARBAGE** - Garbage collection is twice per week, generally Monday and Thursday, with recycling on Monday and yard waste on Wednesday. The homeowner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges homeowners for extra refuse. If a homeowner has an appliance to be picked-up, the homeowner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as required by the City of Palmetto shall not be picked up by the City of Palmetto.
15. **ADDITIONS** - A written plan must be submitted in advance and approved by Park Management before work begins for any additions, alterations, or construction to a home or to the lot. Homeowners are chargeable with compliance with all City of Palmetto construction regulations. No pool of any kind is allowed on any homeowner lot.
16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The homeowner is responsible for his/her electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport. Any additions to existing utility sheds is subject to the provisions of Regulation 15.

20. **MEDIA REGULATION** - Outdoor antennas and aeriels are not permitted.

21. **RISK OF LOSS** - Colonial Mobile Manor is not liable for accident or personal injury to any person or property through the use of any park facility. Homeowners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #___, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

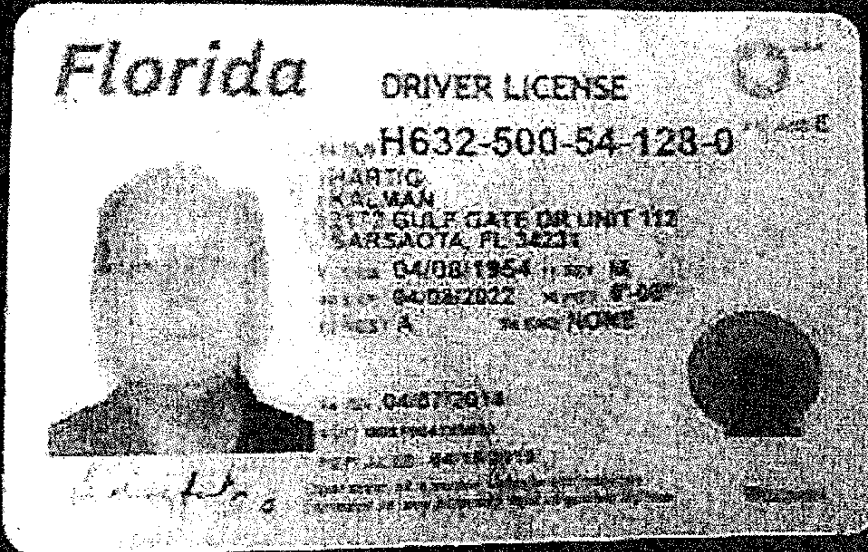
25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager
900 - 9th Avenue East
Palmetto, Florida 34221.

As to Owner:

Colonial Manor MHC Holdings, LLC
900 - 9th Avenue East
Palmetto, Florida 34221.



Colonial Mobile Manor
900 9th Ave. East (U.S. 301 North)
Palmetto, Florida 34221 Phone: (941) 722-3191

LEASE AGREEMENT

This lease is made this 1 day of January, 2021, between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and Kulman and Elizabeth Harding, hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT # 100 in Colonial Mobile Manor in Palmetto, Florida for a term of 12 months to commence at a total rent of \$ 621.50, payable in equal installments of \$ 621.50 per month, on the first day of each month. Occupancy is based on one or two senior citizens per lot. Each additional resident is charged \$ 900.00 per year, payable \$ 25.00 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45.00.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated April 1, 2016, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

The Landlord and the Resident have respectfully signed this lease as of the day and year first written above.

Colonial Mobile Manor Limited

By: Lori Skipper

X Kulman Harding Jr
Resident

X _____
Resident

Vehicle Identification Number: 07113337A Year: 1971 Make: RINTZ Body: HS VLT: 40-1 Weight: 4000 LBS. Title Number: 4961789

Registered Owner:

KALMAN HARTIG
900 9TH AVE LOT 100
PALMETTO, FL 34221

Date of Issue: 09/07/2022

Use Release
Indicate in the designated section if hereby released
By: _____
Title: _____
Date: _____

IMPORTANT INFORMATION

- When ownership of the vehicle described herein is transferred, the seller MUST complete in full the Transfer of Title by Seller section at the bottom of the certificate of title.
- Upon sale of this vehicle, the seller must complete the notice of sale on the reverse side of this form.
- Remove your license plate from the vehicle.
- See the web address below for more information and the appropriate forms required for the purchaser to title and register the vehicle, make home or vessel. <http://www.hmv.state.fl.us/titles/index.html>

Mail To:

KALMAN HARTIG
900 9TH AVE LOT 100
PALMETTO, FL 34221

CERTIFICATE OF TITLE

Vehicle Identification Number: 07113337A	Year: 1971	Make: RINTZ	Body: HS	VLT: 40-1	Weight: 4000 LBS.	Title Number: 4961789	Use Release: Indicate in the designated section if hereby released
Primary Brand: FL	Color: UNK	Primary Brand:	Secondary Brand:	Model:	Year:	Private Data: 12/17/2020	By:
Continuing Sale or Vehicle Manufacturer's Use		Engine Drive:	Fuel Material:	Prop:	Date of Sale: 09/07/2022	Date:	

Registered Owner:

KALMAN HARTIG
900 9TH AVE LOT 100
PALMETTO, FL 34221

1st Lienholder:

NONE

DIVISION OF MOTORIST SERVICES

TALLAHASSEE

FLORIDA

DEPARTMENT OF HIGHWAY SAFETY AND MOTOR VEHICLES

Robert R. Kyrach

Robert R. Kyrach
Director



John L. Rhodes

John L. Rhodes
Executive Director

Certified Number: 157702618

15 / 3 157702618

TRANSFER OF TITLE BY SELLER (This section must be completed at the time of sale.)

Seller must indicate whether the sale is for cash, purchase money, or other consideration, and the date and place of sale, and the name of the purchaser.

This title is transferred by the Seller to the purchaser for cash or other consideration, and the money vehicle is sold to the purchaser for cash or other consideration.

Seller Must Enter Purchaser's Name:

Address:

Seller Must Enter Selling Price:

Seller Must Enter Date Sold:

PM: when due date ☐ 1 or ☐ 5 days (return to seller)

and I hereby agree to be the basis of my liability for the above sale.

☐ 1. I am NOT the ACTUAL SELLER

☐ 2. I am IN EXCESS OF MY MECHANICAL LIMITS

☐ 3. I am NOT the ACTUAL SELLER

UNDER PENALTY OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING DOCUMENT AND THAT THE FACTS STATED IN IT ARE TRUE.

SELLER'S NAME:

CO-SELLER NAME:

Sign Here:

Sign Here:

Print Name:

Print Name:

Selling Dealer's License Number:

The Date:

The County:

Agent Name:

Agent Name:

PURCHASER'S NAME:

CO-PURCHASER NAME:

Sign Here:

Sign Here:

Print Name:

Print Name:

NOTICE: PENALTY IS IMPOSED BY LAW IF NOT SUBMITTED FOR TRANSFER WITHIN 30 DAYS AFTER DATE OF PURCHASE.

Identification Number
071133372

Year
1971

Make
BUICK

Body
HS

Weight
40

Vehicle Registration Fee

File Number
4961790



Registered Owner

KALMAN HARTIG
900 9TH AVE LOT 100
PALMETTO, FL 34221

Date of Issue 09/07/2022

Don Release
Interest in the described vehicle is hereby released
By _____
Title _____
Date _____

Mail To:

KALMAN HARTIG
900 9TH AVE LOT 100
PALMETTO, FL 34221

IMPORTANT INFORMATION

1. When ownership of the vehicle described herein is transferred, the seller MUST complete in full the Transfer of Title by Seller section at the bottom of the certificate of title.
2. Upon sale of the vehicle, the seller must complete the notice of sale on the reverse side of this form.
3. Remove your license plate from the vehicle.
4. See the web address below for more information and the appropriate forms required for the purchaser to file and register the vehicle, mobile home or vessel: <http://www.flhsmv.state.fl.us/titles/index.html>

CERTIFICATE OF TITLE

Identification Number 071133372	Year 1971	Make BUICK	Body HS	Weight 40	Vehicle Registration Fee	File Number 4961790	Don Release Interest in the described vehicle is hereby released
Primary Brand EL	Color UNKN	Secondary Brand	Model PRIVATE	Year of Issue 12/17/2020	Date of Issue 09/07/2022	Title	
Owner's State or Valid Mail (Signature or CH use)		Owner's State	Mail Number	Prop	Date of Issue	Title	

Registered Owner

KALMAN HARTIG
900 9TH AVE LOT 100
PALMETTO, FL 34221

Initial Holder

MURK

DIVISION OF MOTORIST SERVICES

TALLAHASSEE

FLORIDA

DEPARTMENT OF HIGHWAY SAFETY AND MOTOR VEHICLES

Robert R. Kirsch

Robert R. Kirsch
Director



John L. Kirsch

John L. Kirsch
Executive Director

Control Number 157702619

15 / 3 157702619

TRANSFER OF TITLE BY SELLER (This section must be completed at the time of sale.)

Federal and/or state law require that the seller read the following, purchaser's name, selling price and date sold in connection with the transfer of ownership.

Failure to complete or providing false statements may result in fines and/or imprisonment.

This title is transferred to the first person whose name is placed on the title of the certificate and the motor vehicle is hereby transferred to

Seller Must Enter Purchaser's Name

Address

Seller Must Enter Selling Price

Date of Sale

Buyer Must Enter Name

1. I am a resident of Florida

2. I am a resident of another state

3. I am a resident of a foreign country

and I hereby certify that to the best of my knowledge the information provided is true.

UNDER PENALTY OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING DOCUMENT AND THAT THE FACTS STATED IN IT ARE TRUE.

Seller Must

Sign Here

CO-Seller Must

Sign Here

Print Name

Print Name

Selling Dealer's License Number

Tax No.

Tax Collected

Alameda Name

Alameda Name

PURCHASER Must

Sign Here

CO-PURCHASER Must

Sign Here

Print Name

Print Name

NOTICE: PENALTY IS INCURRED BY LAW IF NOT ALLEGED FOR TRANSFER WITHIN 30 DAYS AFTER DATE OF PURCHASE.

COURTESY LOT/HOME OBSERVATION NOTICE

Colonial Manor

07/10/2023

Resident: Kalman Hartig

Address: 900 9th Ave E Lot #100, Palmetto, FL 34221 USA

Space #: 100

Dear Valued Resident,

We here at Colonial Manor take great pride in our community and its high standards that are maintained by both the homeowner and the park, the community's goal is to maintain a "Clean, Green and Safe" environment that we can all be proud of.

For this reason, we want to bring to your attention some improvements that can be made regarding your yard, home, and/or other misc items. These include but are not limited to the following:

REASON(s): Unauthorized storage of personal items on property (Driveway)

Please have these issues resolved by Monday, July 24, 2023 (14 days)

If for any reason you are unable to act on these items, please make an appointment with the park office to discuss this with us and work out a solution together. We are happy to help in any way that we are able, so that we can improve and better the community.

If you disagree with this notice and feel your space is in compliance with the community rules and regulations, then contact colonialmanor@kmemh.com or customerservice19@kmemh.com (If you email this, please provide your park name and space number)

Thank You,

Cheryl Peake
Park Management
(941) 722-3191

2ND NOTICE

Colonial Manor LANDLORD'S 7 DAY RULE VIOLATION NOTICE

TO: Kalman Hartig 900 9th Ave E Lot #100, Palmetto, FL 34221 USA

You are hereby notified that you are in violation of the park rules and/or leasehold provisions for the mobile home having address of 900 9th Avenue East, Palmetto, FL 34221 USA Lot #100 located at Colonial Manor Mobile Home Park, for the following reasons:

REASON(s): **Debris on Property (Driveway)**

CURE(s): **Remove debris from property (Driveway)**

You are hereby notified that you must cure the above referenced rule(s) violation(s) within 7 days of the date of service of this Notice on you. If you fail to cure or fail to refrain from the referred to violations within said 7 day period, or if a written agreement is not made between the park and you, allowing for a variation in the rule or cure period, or, alternatively, if you fail to vacate the premises within such a period of 7 days, you will be in violation of the above referred to violation(s). You will also be in violation of your lease agreement and the rules of the park. If you fail to cure the said violations, eviction proceedings will be commenced against you to evict you from the premises and to obtain judgment against you for any rent and other charges accrued, together with attorney fees and costs.

You are further put on notice, that in the event you again violate the above referred to rules, or a different rule of the park, this will result in the forfeiture of your lease and eviction without any further period of cure.

You are hereby given Notice of your right to a meeting with park management to attempt resolution of disputes. If you the resident dispute the occurrences of noncompliance claimed by the mobile home park in this written Landlord's 7- Day Rule Violation Notice of noncompliance, you have the right to require management of the mobile home park to participate in a meeting with you. You must give the mobile home park management, within five days after receiving this notice, a written notice disputing the rule violations and requesting a meeting with management to attempt to resolve the dispute. If you fail to give the mobile home park a written notice of dispute within 7 days of your receipt of this Landlord's 7-Day Rule Violation Notice your right to request a meeting is waived.

If you give a timely written notice, as set forth above, the management of the mobile home park shall meet with you in person in a settlement discussion to attempt to resolve the dispute. The meeting shall take place within two days after you give the written notice, set forth above, unless you and management agree to a later date.

Please govern yourself accordingly.

DATED this 25 day of August, 2023.

By: Management: Cheryl Peake

Address: 900 9th Avenue East, Palmetto, FL 34221 USA | Telephone: (941) 722-3191 | Email: colonialmanor@kmcmmh.com

3RD NOTICE

COURTESY LOT/HOME OBSERVATION NOTICE

Colonial Manor

10/10/2023

Resident: Kalman Hartig

Address: 900 9th Ave E Lot #100, Palmetto, FL 34221 USA

Space #: 100

Dear Valued Resident,

We here at Colonial Manor take great pride in our community and its high standards that are maintained by both the homeowner and the park. The community's goal is to maintain a "Clean, Green and Safe" environment that we can all be proud of.

For this reason, we want to bring to your attention some improvements that can be made regarding your yard, home, and/or other misc items. These include but are not limited to the following:

REASON(s): Unauthorized storage of personal items on property (Driveway)

Please have these issues resolved by Tuesday, October 24, 2023 (14 days)

If for any reason you are unable to act on these items, please make an appointment with the park office to discuss this with us and work out a solution together. We are happy to help in any way that we are able, so that we can improve and better the community.

If you disagree with this notice and feel your space is in compliance with the community rules and regulations, then contact colonialmanor@kmcnh.com or customerservice1@kmcnh.com (If you email this, please provide your park name and space number)

Thank You,

Cheryl Peake
Park Management
(941) 722-3191

4TH NOTICE

COURTESY LOT/HOME OBSERVATION NOTICE
Colonial Manor
10/24/2023

Resident: Katman Hartig
Address: 900 9th Ave E Lot #100, Palmetto, FL 34221 USA
Space #: 100

Dear Valued Resident,

We here at Colonial Manor take great pride in our community and its high standards that are maintained by both the homeowner and the park, the community's goal is to maintain a "Clean, Green and Safe" environment that we can all be proud of.

For this reason, we want to bring to your attention some improvements that can be made regarding your yard, home, and/or other misc items. These include but are not limited to the following:

REASON(s): Unauthorized storage of personal items on property (Driveway)

Please have these issues resolved by Tuesday, November 7, 2023 (14 days)

If for any reason you are unable to act on these items, please make an appointment with the park office to discuss this with us and work out a solution together. We are happy to help in any way that we are able, so that we can improve and better the community.

If you disagree with this notice and feel your space is in compliance with the community rules and regulations, then contact colonialmanor@kmcmh.com or customerservice1@kmcmh.com (If you email this, please provide your park name and space number)

Thank You,

Cheryl Peake
Park Management
(941) 722-3191

5TH NOTICE

COURTESY LOT/HOME OBSERVATION NOTICE

Colonial Manor

11/07/2023

Resident: Kalman Hartig

Address: 900 9th Ave E Lot #100, Palmetto, FL 34221 USA

Space #: 100

Dear Valued Resident,

We here at Colonial Manor take great pride in our community and its high standards that are maintained by both the homeowner and the park, the community's goal is to maintain a "Clean, Green and Safe" environment that we can all be proud of.

For this reason, we want to bring to your attention some improvements that can be made regarding your yard, home, and/or other misc items. These include but are not limited to the following:

REASON(s): Unauthorized storage of personal items on property (Driveway)

Please have these issues resolved by Tuesday, November 21, 2023 (14 days)

If for any reason you are unable to act on these items, please make an appointment with the park office to discuss this with us and work out a solution together. We are happy to help in any way that we are able, so that we can improve and better the community.

If you disagree with this notice and feel your space is in compliance with the community rules and regulations, then contact colonialmanor@kmemh.com or customerservice1@kmemh.com (If you email this, please provide your park name and space number)

Thank You,

Cheryl Peake
Park Management
(941) 722-3191

6TH NOTICE

COURTESY LOT/HOME OBSERVATION NOTICE

Colonial Manor

11/24/2023

Resident: Kalman Hartig

Address: 900 9th Ave E Lot #100, Palmetto, FL 34221 USA

Space #: 100

Dear Valued Resident,

We here at Colonial Manor take great pride in our community and its high standards that are maintained by both the homeowner and the park. The community's goal is to maintain a "Clean, Green and Safe" environment that we can all be proud of.

For this reason, we want to bring to your attention some improvements that can be made regarding your yard, home, and/or other misc items. These include but are not limited to the following:

REASON(s): Unauthorized storage of personal items on property (Driveway)

Please have these issues resolved by Friday, December 8, 2023 (14 days)

If for any reason you are unable to act on these items, please make an appointment with the park office to discuss this with us and work out a solution together. We are happy to help in any way that we are able, so that we can improve and better the community.

If you disagree with this notice and feel your space is in compliance with the community rules and regulations, then contact colonialmanor@kmcnh.com or customerservice1@kmcnh.com (If you email this, please provide your park name and space number)

Thank You,

Cheryl Peake
Park Management
(941) 722-3191

7TH NOTICE

COURTESY LOT/HOME OBSERVATION NOTICE

Colonial Manor

12/13/2023

Resident: Kulman Hartig

Address: 900 9th Ave E Lot #100, Palmetto, FL 34221 USA

Space #: 100

Dear Valued Resident,

We here at Colonial Manor take great pride in our community and its high standards that are maintained by both the homeowner and the park, the community's goal is to maintain a "Clean, Green and Safe" environment that we can all be proud of.

For this reason, we want to bring to your attention some improvements that can be made regarding your yard, home, and/or other misc items. These include but are not limited to the following:

REASON(s): Unauthorized storage of personal items on property (Driveway)

Please have these issues resolved by Wednesday, December 27, 2023 (14 days)

If for any reason you are unable to act on these items, please make an appointment with the park office to discuss this with us and work out a solution together. We are happy to help in any way that we are able, so that we can improve and better the community.

If you disagree with this notice and feel your space is in compliance with the community rules and regulations, then contact colonialmanor@kmemh.com or customerservice1@kmemh.com (If you email this, please provide your park name and space number)

Thank You,

Cheryl Peake
Park Management
(941) 722-3191

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191

DATE: January 17, 2024
TO:

Certified Mail - Return Receipt Requested
#9589-0710-5270-0136-5649-30

Kalman Hartig and Any Unknown
Party(s) in Possession
900 9TH Avenue East, Lot 100
Palmetto, Florida 34221

**Notice of Non-Compliance with Community Rules and Regulations Giving Tenant/Owner
Seven (7) Days to Correct Non-Compliance**

YOU ARE HEREBY NOTIFIED that pursuant to Florida Statute §723.061(c) and Florida Statutes Section 723.023, your conduct has violated Colonial Mobile Manor Rules and Regulations, in particular, Rule 7, which pertains to Lot and Home Maintenance. The Rule states in relevant part:

The Home owner shall maintain the lot and the exterior of the home in a neat and clean manner.... Storage is not permitted on the patio, in the driveway, or on the lot.

This conduct is not just a violation of Park Rules; it is also a violation of Florida Statutes Section 723.023, which reads in relevant part:

§ 723.023. Mobile home owner's general obligations.

A mobile home owner shall:

...(2) At all times keep the mobile home lot that he or she occupies clean, neat, and sanitary, and maintained in compliance with all local codes.

Your conduct, which has violated with Rule Number 7 and Florida Statutes Section 723.023(2), is the use of your covered driveway for storage; including, without limitation, storing bags of clothes, boxes, bins, cleaning supplies, an ironing board and other tools and implements, which render your mobile home lot not clean, not neat and unsanitary.

Your action required to correct the non-compliance with Rule 7 consists of ceasing the use of your driveway for storage; removing the items stored in and on the driveway, to make and keep your mobile home clean, neat and sanitary.

Pursuant to Florida Statute §723.061, DEMAND IS HEREBY MADE that you remedy the non-compliance with Rule 7 within seven (7) days of receipt of this Notice, or your tenancy shall be terminated and all persons residing there shall vacate the premises upon such termination pursuant to Fla. Stat. §723.061(c)2. Colonial Mobile Manor hereby puts you on notice that if this same conduct continues or is repeated within twelve (12) months, your tenancy is subject to termination without you being given an opportunity to cure the violation as to violation.

Fla. Stat. §723.061(2) reads:

For a second violation of the same properly promulgated rule or regulation, rental agreement provision, or this chapter within 12 months, the mobile home park owner may terminate the tenancy if she or he has given the mobile home owner, tenant, or occupant written notice, within 30 days after the first violation, which specified the actions of the mobile home owner, tenant, or occupant that caused the violation and gave the mobile home owner, tenant, or occupant 7 days to correct the noncompliance. The mobile home owner, tenant, or occupant must have received written notice of the ground upon which she or he is to be evicted at least 30 days prior to the date on which she or he is required to vacate.

A second violation of a properly promulgated rule or regulation, rental agreement provision, or this chapter within 12 months of the first violation is unequivocally a ground for eviction, and it is not a defense to any eviction proceeding that a violation has been cured after the second violation.

Pursuant to Fla. Stat. §723.061(c)2, Colonial Manor hereby puts you on notice that if this same conduct continues or is repeated within twelve (12) months, your tenancy is subject to termination without you being given an opportunity to cure the violations described above.

PLEASE GOVERN YOURSELVES ACCORDINGLY.

Cheryl Peake
Cheryl Peake
Colonial Manor Mobile Home Park

1-17-24
Date

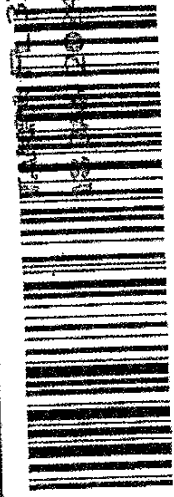
Additional service by posting a copy at residence

By: Cheryl Peake
Community Representative

1-17-24
Date of Posting

William C. Price, III, P.A.
 Attorney and Counselor at Law
 522 Twelfth Street West
 Bradenton, Florida 34205

CERTIFIED MAIL®



9589 0710 5270 0136 5649 30

335
 FIRST CLASS

US POSTAGE
 ZIP 34205 \$ 008.53
 02 7H JAN 7 2024
 0006023973

Handwritten: 1/20-20
 12/09

Kalman Hartig and Any Unknown
 Party(s) in Possession
 900 9th A
 Palmetto

NIXIE

339 DE 1 0002/18/24

RETURN TO SENDER
 UNCLAIMED
 UNABLE TO FORWARD

94241553051

94009225/0000100

BC: 34205/41122

25/4-0001/12-02

U.S. Postal Service™
CERTIFIED MAIL® RECEIPT
 Domestic Mail Only

For delivery information, visit our website at www.usps.com

OFFICIAL USE

Certified Mail Fee

Extra Services & Fees (check box, add fee as appropriate)
☐ Return Receipt (hardcopy) \$
☐ Return Receipt (electronic) \$
☐ Certified Mail Restricted Delivery \$
☐ Adult Signature Required \$
☐ Adult Signature Restricted Delivery \$

Postage

Total Postage and Fees

Postmark
 Here

Handwritten: Kalman Hartig & Any Unknown
 Party(s) in Possession 900 9th
 A Palmetto
 PS Form 3800, January 2023 PSN 7530-02-000-9000 See Reverse for Instructions

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MANOR
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191

DATE: March 1, 2024

TO: Kalman Hartig and Any Unknown Party(s) in Possession
900 9th Avenue East, Lot #100
Palmetto, Florida 34221

CMRR: #3589-0710-5270-0136-5653-02 AND BY POSTING

RE: NOTICE OF TERMINATION OF LEASE

YOU ARE NOTIFIED THAT PURSUANT TO FLORIDA STATUTE §723.061 YOUR RIGHT TO RESIDE IN THE PREMISES IDENTIFIED AS 900 9TH AVENUE EAST, LOT #100, MANATEE COUNTY, PALMETTO, FLORIDA 34221 IS TERMINATED EFFECTIVE APRIL 7, 2024. THIS NOTICE IS A RESULT OF FAILURE TO COMPLY WITH RULE 7 OF THE RULES AND REGULATIONS OF COLONIAL MANOR BY FAILING TO MAINTAIN YOUR LOT AND KEEP YOUR HOME IN A CLEAN AND NEAT MANNER. THIS NOTICE IS AS A RESULT OF YOUR FAILURE TO COMPLY WITH THE RULES AND REGULATIONS OF COLONIAL MANOR MHC HOLDINGS, LLC, MAILED TO YOU AND POSTED ON LOT 100 ON JANUARY 17, 2024. IF YOU REMAIN IN THE PREMISES BEYOND APRIL 7, 2024, YOU WILL BE CONSIDERED A TENANT AT SUFFERANCE AND AN ACTION FOR POSSESSION OF THE PREMISES WILL BE PURSUED.

YOUR RENT WILL NOT BE ACCEPTED, IF YOU CHOOSE TO VACATE THE PREMISES PRIOR TO THE LEASE TERMINATION DATE, YOU ARE ADVISED TO CONTACT THE COMMUNITY MANAGER REPRESENTATIVE IMMEDIATELY.

LANDLORD: COLONIAL MANOR MHC HOLDINGS, LLC
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191

I HEREBY CERTIFY that a copy of the foregoing was SERVED upon the named tenant and POSTED at the above referenced address, this 1ST day of March 2024.

By: Cheryl Prake
Name of person posting this notice

Cheryl Prake
CHERYL PRAKE, Community Manager

Prepared by:
William C. Price, III, Esquire
Florida Bar No. 0157824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34209

For delivery information, visit our website at www.usps.com.

Certified Mail Fee

☐ Return Receipt (electronic)	\$
☐ Certified Mail Restricted Delivery	\$
☐ Adult Signature Required	\$
☐ Adult Signature Restricted Delivery	\$

Postage _____
\$ _____
Total Postage and Fees _____

§ 11

San Jose
Kaman Hata OK

Street and Apt. No., or PO Box no.

any (s) in this case

11-14-44

3800, January 2023 PSN 7631-02 006 0513

100-443637

Sender Name: Rayman Harba RN RNy Lutenau
 Address: Box 101, No. 1, or P.O. Box 101
 City, State, ZIP: Winnipeg, Manitoba R9B 9B9
 Phone: 204-222-1111
 Date: 1990, January 2023 PSN 7530-02 000-6547 See Reverse for Instructions

- Complete items 1, 2, and 3.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

1. Article Addressed to:

Kalman Hartig & Any
Unknown Party(s) In
Possession
900 9th Ave S Ltr 100
Palmetto FL 34221



9590 9402 7383 2028 3105 57

2. A Number (Transfer from service label)

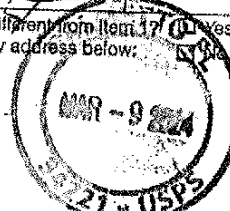
9507 0710 5270 0136 5653

PS Form 3811, July 2020 PSN 7530-02-000-9053

A. Signature ☐ Agent
X ☒ Addressee

B. Received by (Printed Name) C. Date of Delivery

D. Is delivery address different from Item 17? ☒ Yes
If YES, enter delivery address below:



3. Service Type

☐ Adult Signature
☐ Adult Signature Restricted Delivery
☒ Certified Mail®
☐ Certified Mail Restricted Delivery
☐ Collect on Delivery
☐ Collect on Delivery Restricted Delivery
☐ Insured Mail
☐ Insured Mail Restricted Delivery
 (over \$500)

☐ Priority Mail Express®
☐ Registered Mail™
☐ Registered Mail Restricted Delivery
☒ Signature Confirmation™
☐ Signature Confirmation Restricted Delivery

Domestic Return Receipt

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR
900 9th Avenue East
Palmetto, FL 34221
941-722-3191

DATE: June 10, 2024

TO:

Certified Mail - Return Receipt Requested

#9589-0710-5270-0136-5655-55

Kalman Hartig and Any Unknown
Party(s) in Possession
900 9th Avenue East, Lot 100
Palmetto, Florida 34221

**Notice of Non-Compliance with Park Rule And Florida Statute Providing Tenant/Owner Seven
(7) Days to Correct Violation**

YOU ARE HEREBY NOTIFIED that pursuant to Florida Statute §723.061(c) and Florida Statutes §723.023, your conduct has violated Colonial Mobile Manor Rules and Regulations, Rule 7, which pertains to Lot and Home Maintenance. The Rule states in relevant part:

"The Home owner shall maintain the lot and the exterior of the home in a neat and clean manner.... Storage is not permitted on the patio, in the driveway, or on the lot."

This conduct is not just a violation of a Park Rule; it is also a violation of Florida Statutes §723.023, which reads in relevant part:

§ 723.023. Mobile home owner's general obligations.

A mobile home owner shall:

...(2) At all times keep the mobile home lot that he or she occupies clean, neat, and sanitary, and maintained in compliance with all local codes.

Your conduct, which has violated with Rule Number 7 and Florida Statutes Section 723.023(2), is the use of your covered driveway for storage; including, without limitation, storing bags of clothes, storage crates and boxes, bins, indoor furniture, a refrigerator and microwave oven, packaged food, plastic storage containers, and other tools and implements, which render your mobile home lot, specifically, your carport not clean, not neat and unsanitary.

Your action required to correct the non-compliance with Rule 7 consists of ceasing the use of your driveway for storage, removing the items stored in and on the driveway, to make and keep the exterior of your mobile home clean, neat and sanitary.

Pursuant to Florida Statute §723.061, DEMAND IS HEREBY MADE that you cure the violation with Rule 7 within seven (7) days of receipt of this Notice, or your tenancy shall be terminated and all persons residing there shall vacate the premises upon such termination pursuant to Fla. Stat. §723.061(c)2. Colonial Mobile Manor hereby puts you on notice that if this same conduct continues or is repeated within twelve (12) months, your tenancy is subject to termination without you being given an opportunity to cure the violation as to violation.

The park is not required to send you this notice. You previously violated the statute (and rule), did not timely cure the violation, and it notified you of the termination of your tenancy. When you UNTIMELY cured, it chose to not evict you. The previous notice was served on January 17, 2024, followed by a Notice of Termination of Lease on March 1, 2024. Due to recurring violation, you are now being served with a new 7-day violation cure notice, which you are given the opportunity to cure. Failure to cure, and to keep your carport and lot exterior clean, neat, and sanitary will result in termination of your tenancy after which you will be required to vacate the premises in accord with Florida Statutes.

Fla. Stat. §723.061(2) reads:

For a second violation of the same properly promulgated rule or regulation, rental agreement provision, or this chapter within 12 months, the mobile home park owner may terminate the tenancy if she or he has given the mobile home owner, tenant, or occupant written notice, within 30 days after the first violation, which specified the actions of the mobile home owner, tenant, or occupant that caused the violation and gave the mobile home owner, tenant, or occupant 7 days to correct the noncompliance. The mobile home owner, tenant, or occupant must have received written notice of the ground upon which she or he is to be evicted at least 30 days prior to the date on which she or he is required to vacate.

A second violation of a properly promulgated rule or regulation, rental agreement provision, or this chapter within 12 months of the first violation is unequivocally a ground for eviction, and it is not a defense to any eviction proceeding that a violation has been cured after the second violation.

PLEASE GOVERN YOURSELVES ACCORDINGLY.

Cheryl Peake
Cheryl Peake
Colonial Manor Mobile Home Park

6-10-24
Date

Additional service by posting a copy at residence

By: Cheryl Peake
Community Representative

6-10-24
Date of Posting

Certified Mail by:
Law Office of William C. Price, III, P.A.
522 12th Street West
Bradenton, FL 34205
(941)-747-8001

cc. Peter Peck, Esq. (by email)

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☐ Adult Signature Restricted Delivery

Postmark
Here

Postage

Total Postage and Fees

Sent To

Kalman Hartzel Any Unknown Party
 900 4th Ave E Lot 100
 Palmetto FL 34221

PS Form 3800, January 2023 PSN 7530-02-000-9047. See Reverse for Instructions

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

Article Addressed to:

Kalman Hartzel
 Any Unknown
 Party(s) in
 Possession
 900 4th Ave E Lot 100
 Palmetto, FL 34221



9590 9402 7383 2028 3153 54

2. Article Number (Transfer from service label)

9589 0710 5270 0136 5655 55

COMPLETE THIS SECTION ON DELIVERY

A. Signature

X *K. Hartzel* ☐ Agent ☒ Addressee

B. Received by (Printed Name)

C. Date of Delivery

K. Hartzel

6/14

D. Is delivery address different from item 1? ☐ Yes
 If YES, enter delivery address below: ☐ No

3. Service Type

- ☐ Adult Signature
- ☐ Adult Signature Restricted Delivery
- ☒ Certified Mail®
- ☐ Certified Mail Restricted Delivery
- ☐ Collect on Delivery
- ☐ Collect on Delivery Restricted Delivery
- ☐ Priority Mail Express®
- ☒ Registered Mail™
- ☐ Registered Mail Restricted Delivery
- ☐ Signature Confirmation™
- ☐ Signature Confirmation Restricted Delivery

PS Form 3811, July 2020 PSN 7530-02-000-9053

Domestic Return Receipt

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MANOR
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191
June 28, 2024

DATE:

TO: Kalman Hartig and Any Unknown Party(s) in Possession
900 9th Avenue East, Lot #100
Palmetto, Florida 34221
CMRR: #9589-0710-5270-0136-5652-58 AND BY POSTING

RE:

NOTICE OF TERMINATION OF LEASE

YOU ARE NOTIFIED THAT PURSUANT TO FLORIDA STATUTE §723.061 YOUR RIGHT TO RESIDE IN THE PREMISES IDENTIFIED AS 900 9TH AVENUE EAST, LOT #100, MANATEE COUNTY, PALMETTO, FLORIDA 34221 IS TERMINATED EFFECTIVE AUGUST 4, 2024. THIS NOTICE IS A RESULT OF FAILURE TO COMPLY WITH RULE 7 OF THE RULES AND REGULATIONS OF COLONIAL MANOR BY FAILING TO MAINTAIN YOUR LOT AND KEEP YOUR HOME IN A CLEAN AND NEAT MANNER; AND SPECIFICALLY USING THE EXTERIOR OF YOUR HOME AND CARPORT FOR STORAGE. THIS NOTICE IS AS A RESULT OF YOUR FAILURE TO COMPLY WITH THE RULES AND REGULATIONS OF COLONIAL MANOR MHC HOLDINGS, LLC, MAILED TO YOU AND POSTED ON LOT 100 ON JUNE 10, 2024. IF YOU REMAIN IN THE PREMISES BEYOND AUGUST 4, 2024 (THE LEASE TERMINATION DATE), YOU WILL BE CONSIDERED A TENANT AT SUFFERANCE AND AN ACTION FOR POSSESSION OF THE PREMISES WILL BE PURSUED.

THE MONTHLY RENT AMOUNT, WHICH IS CURRENTLY THE SUM OF \$761.61, WILL NO LONGER BE ACCEPTED. IF YOU CHOOSE TO VACATE THE PREMISES PRIOR TO THE LEASE TERMINATION DATE, YOU ARE ADVISED TO CONTACT THE COMMUNITY MANAGER REPRESENTATIVE IMMEDIATELY.

LANDLORD: COLONIAL MANOR MHC HOLDINGS, LLC
900 9TH Avenue East
Palmetto, FL 34221
941-722-3191

I HEREBY CERTIFY that a copy of the foregoing was SERVED upon the named tenant and POSTED at the above referenced address, this 28TH day of June, 2024.

By: Cheryl Drake
Name of person posting this notice

Cheryl Drake
CHERYL DRAKE, Community Manager

Prepared by:
William C. Price, III, Esquire
Florida Bar No. 0557424
WILLIAM C. PRICE, PLLC
225 Twelfth Street West
Gainesville, Florida 34555

William C. Price, III, P.A.
Attorney and Counselor at Law
522 Twelfth Street West
Bradenton, Florida 34205

1.9333120017901142

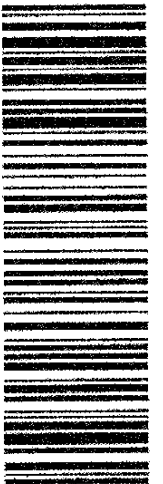
2/12

UN
342057411

Kalman Hartig and
Any Unknown Party(s) in Possession
900 9th Avenue East Lot #100
Palmetto

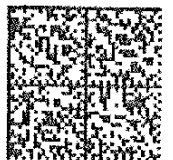
NIXIE 339 CE 1 0207/18/24
RETURN TO SENDER
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RC: 34205741122 *1901-03321-2E-45

CERTIFIED MAIL

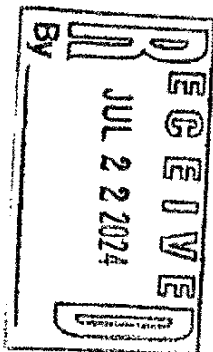


9589 0710 5270 0136 5652 58

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☐ Adult Signature Required \$

☐ Adult Signature Restricted Delivery \$

Postage

Total Postage and Fees

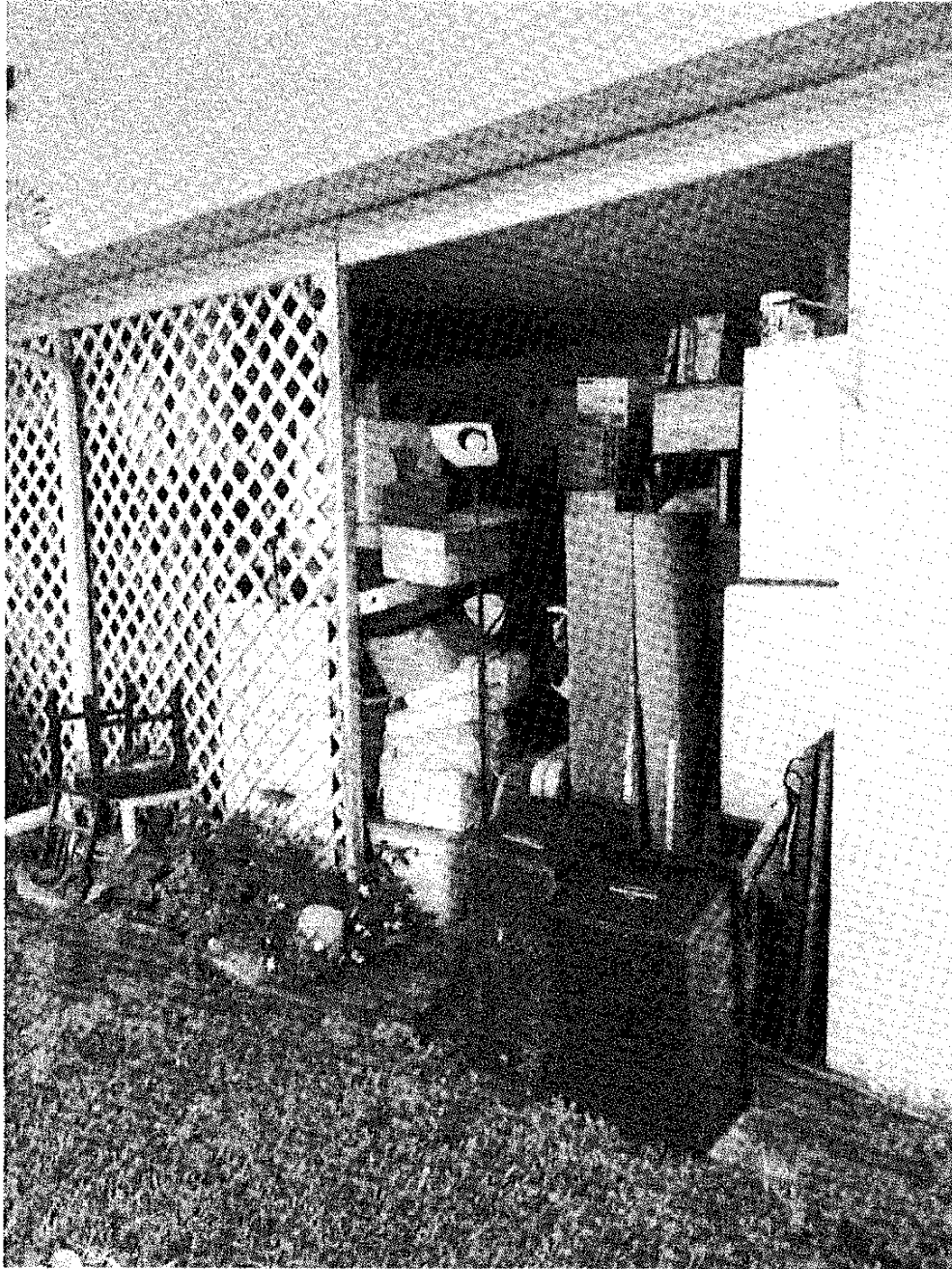
Sent To

Kalman Hartig and Any Unknown Party(s) in Possession 900 9th Avenue East Lot #100 Palmetto, FL 34205

Postmark Here

PS Form 3800, January 2023 (PSN 7530-02-000-9000) See Reverse for Instructions







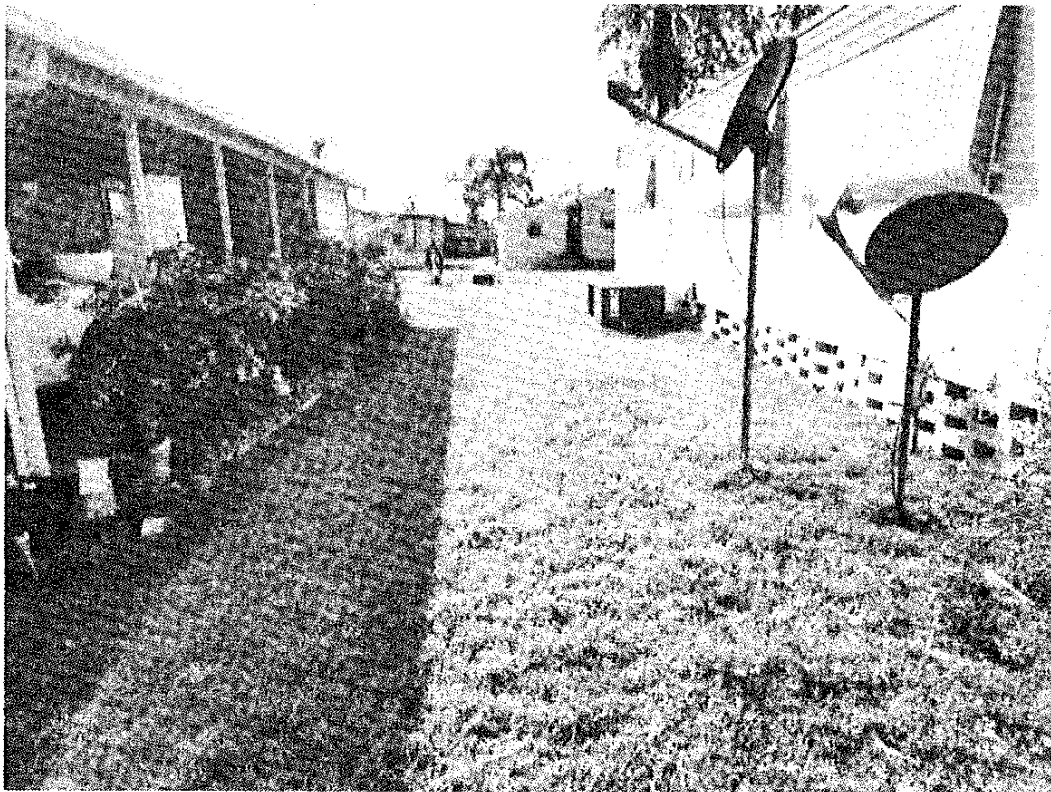




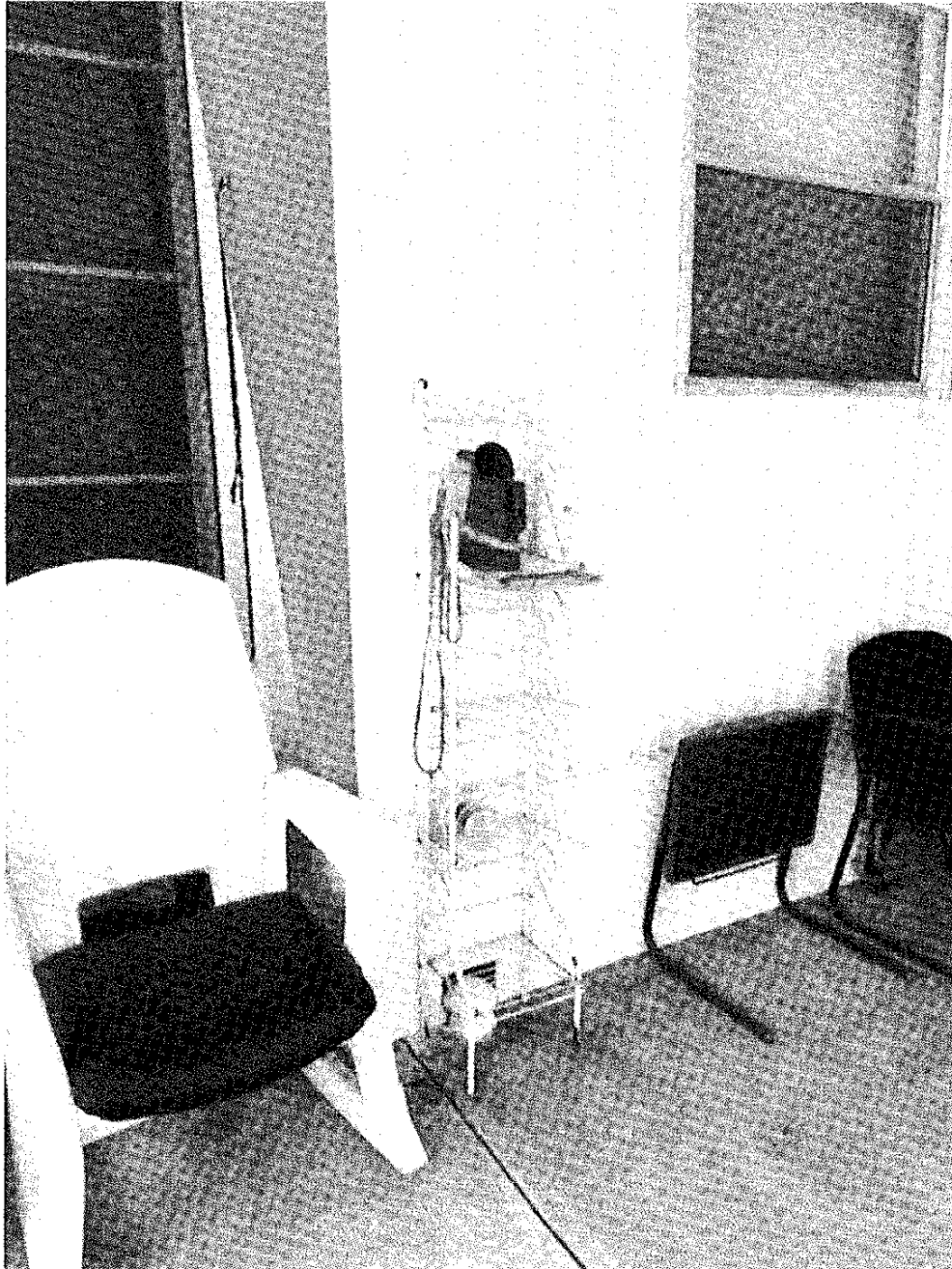




















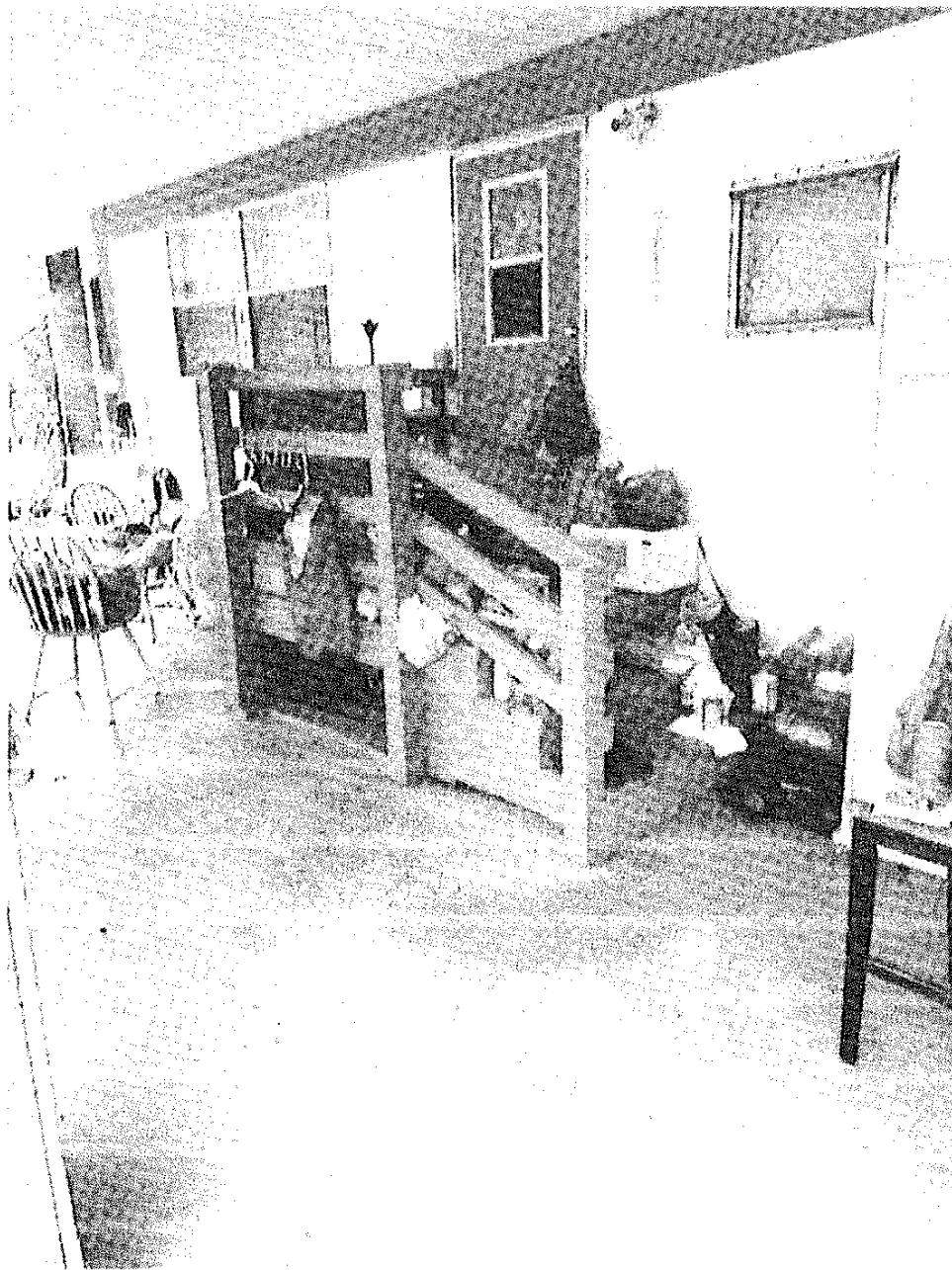






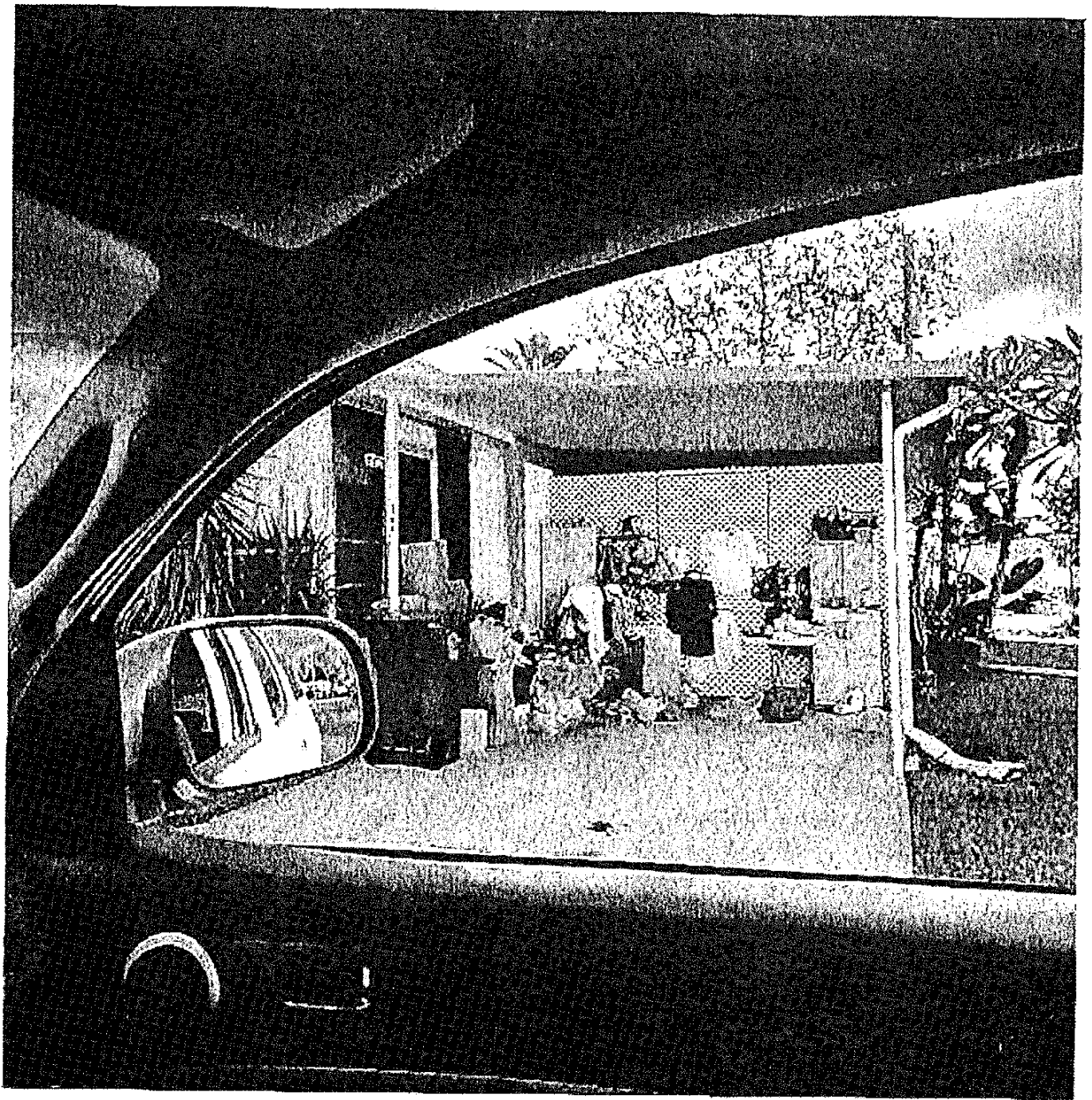












Nov 24, 2023 @ 10:35AM

